ACKNOWLEDGING THE DIVERSITY WITHIN THE SCs, THE JUDGMENT FACILITATES A MORE NUANCED AND EQUITABLE DISTRIBUTION OF QUOTA BENEFITS

enacted the Haryana Scheduled Castes (Reservation in Admission in Educational Institutions) Act, reserving half of the 20 per cent seats for SCs in higher education for the "deprived scheduled castes". The Supreme Court ruling has validated both the 1994 notification and the 2020 law.

Various states have constituted commissions to examine disparities in reservation benefits among different SC/ ST groups. The 2003 Lahuji Salve Commission in Maharashtra recommended subclassifying the Mang caste, while the 2005 Justice A.J. Sadashiva Commission in Karnataka proposed dividing 101 castes into four categories. In 2007, Bihar's Mahadalit Commission identified 18 extremely disadvantaged castes for special consideration.

IS SUBCLASSIFICATION NECESSARY?

Research and data highlight significant disparities within the SC communities regarding educational attainment, economic status and social mobility, demonstrating that subclassification benefits certain castes. In 2008, the Usha Mehra Commission reported that the "advanced" Mala caste in Andhra Pradesh held 76-86 per cent of IAS and IPS positions, while the Madigas got only 13-23 per cent. Despite the Madigas making up 49 per cent of the state's SC population compared to the Malas' 41 per cent, they remain underrepresented. Similarly, in Tamil Nadu, as Yogendra Yadav notes, although the Arunthathiyars constitute about 16 per cent of the state's SC population, their presence among SC government employees is a mere 0.5 per cent.

A 2007 study by sociologists S.S. Jodhka and Avinash Kumar showed that following the SC subclassification in Haryana from 1996 to 2003, even though 60 per cent of people from the Chamar caste became Class I officers, nearly 50 per cent from other Dalit castes also attained such positions. Representation of more deprived castes in Class II jobs rose from 8 to 48 per cent, and in Class III jobs, from 10 to 49 per cent.

However, not everyone is convinced by these empirical studies. While some groups within SCs and STs may miss out on reservation benefits, a significant portion of SC/ ST quotas in government jobs remain unfilled annually, making critics question whether dominant subcastes and tribes truly exclude more deprived ones. According to the Department of Personnel and Training's 2022-23 report, SCs hold 17 per cent of central government jobs, largely due to 35 per cent working as *safai karamcharis*. SC representation among Group A

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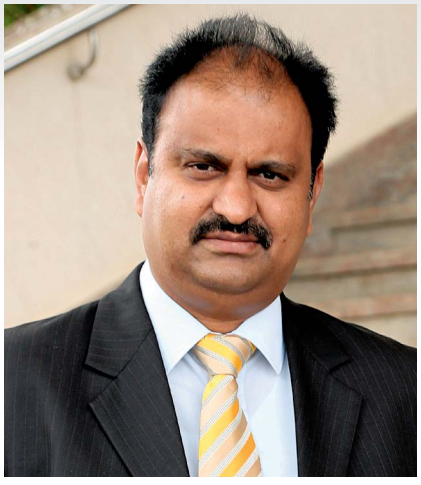
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